

25VECV00775 25VECV00775

County: los-angeles
Division: Civil Law and Motion
Department: O
Hearing date: 2026-09-23
Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C09%2F23%2F2026
Source SHA-256: 645177145882253ae47dc478ecafab7a47611dfd18154447f1b0b3aaa0d61626

Case Number: 25VECV00775 Hearing Date: September 23, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MOHSEN BALADEHEI, an individual,

Plaintiff,

vs.

BEHNOOSH NASSERZAREH, an individual; and DOES 1 through 25, inclusive.

Defendant.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 25VECV00775

ORDER GRANTING DEFENDANT'S AND CROSS-COMPLAINANT'S MOTIONS TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES, FORM INTERROGATORIES, REQUESTS FOR PRODUCTION, AND MOTION TO DEEM RFAS ADMITTED

BEHNOOSH NASSERZARE, an individual,

Cross-Complainant,

vs.

MOHSEN BALADEHEI, an individual.

Cross-Defendant.

)

)

)

)

On December 24, 2025, Nasserzare filed an Answer.

On June 15, 2026, Nasserzare filed a Cross-Complaint alleging (1) Breach of Contract; (2) Promissory Estoppel; (3) Conversion; (4) Promissory Fraud; (5) Constructive Fraud; (6) Assault; and (7) Battery.

On August 17, 2026, Nasserzare filed the instant discovery motions.

On September 16, 2026, the Court sustained Baladehei's Demurrer to the Third Cause of Action for Conversion, Third Cause of Action for Promissory Fraud, and Fifth Cause of Action for Constructive Fraud with leave to amend.

On September 22, 2026, Baladehei filed an Opposition, which the Court will consider although it is untimely but Baladehei is warned that should it happen again, the Court will likely disregard it.

III. LEGAL STANDARD

A. Requests for Production

A party upon whom a demand for the production of documents has been made has 30 days after service of the demand to respond. (See Code Civ. Proc. § 2031.260(a).)[1] The propounding and responding parties may agree to extend the time for response. (See Code Civ. Proc. § 2031.270(a).) When a party fails to serve a timely response, the propounding party's remedy is to seek a motion to compel response. (See Code Civ. Proc. § 2031.300(b).) A responding party that does not provide responses waives the right to object to the demand, including objections based on privilege or work product. (See Code Civ. Proc. § 2031.300(a).) 2

B. Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (See Code Civ. Proc. § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

C. Requests for Admission

"Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc. § 2033.010.) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared..." (Code Civ. Proc. § 2033.250(a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (See Code Civ. Proc. § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (See Code Civ. Proc. § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (See Code Civ. Proc. § 2033.280(c).)

IV. ANALYSIS

Nasserzare moves to compel Baladehei's responses to her Requests for Production (Set One), Special Interrogatories (Set One), and Form Interrogatories (Set One). Nasserzare also moves to deem admitted as to Baladehei her Requests for Admission (Set One). Because the Motions rely on substantially similar facts, the Court will address them together.

On June 26, 2026, Nasserzare served discovery on Baladehei including her SROGs, FROGs, RFPs, and RFAs. (See e.g. RFPs Declaration of Katie Pierucci filed August 17, 2026 ("RFPs Pierucci Decl.", ¶ 2, Ex. A.) Baladehei has not provided any discovery responses to date. (See id., ¶ 6.)

The Court finds Nasserzare is entitled to an order compelling Baladehei's responses to her RFPs, FROGs, and SROGs. The Court finds Nasserzare is entitled to an order deeming the truth of matters admitted in her RFAs. Thus, the Court GRANTS Nasserzare's Motions to Compel SROGs, FROGs, and RFPs. The Court GRANTS Nasserzare's Motion to Deem RFAs Admitted. Because Baladehei's untimely opposition does not include the substantive responses to the RFAs, the Court is unable to determine whether they are code compliant so as to warrant denying the Motion RFAs. Should Nasserzare's counsel agree that they are at the hearing, the Court will deny the motion. Should Nasserzare's counsel not agree, then counsel are directed to submit it to the Court to review and the Court will continue the hearing on the Motion RFAs.

The fact Baladehei served responses on September 16, 2026, after the instant motions were filed is irrelevant as the Court believes a party should not have to file discovery motions to galvanize the opposing party to provide responses. Baladehei is ordered to provide code compliant responses without objection on or before October 9, 2026. If Baladehei chooses to rely on the responses provided on September 16, 2026, then the time for Nasserzare to file a motion to compel further responses does not start running until October 10, 2026.

V. DISCOVERY SANCTIONS

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel . . . responses to interrogatories or production demands, absent substantial justification or other circumstances that make imposing the sanctions unjust." (Code Civ. Proc. § 2030.290(c), § 2031.300(c).)

The court shall also impose a "monetary sanction...on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc. § 2033.280(c).)

Nasserzare's counsel seeks discovery sanctions of \$6,265.00 in connection with each discovery motion. This total comprises 3 hours to prepare this Motion, 3 hours on the Reply in support of this Motion, and 1 hour for the hearing on this Motion at the hourly rate of \$895.00. (See e.g. RFPs Pierucci Decl., ¶ 7.)

The Court awards Nasserzare's counsel \$2,237.50 in discovery sanctions. This comprises 2 hours to prepare the routine, substantially similar discovery motions and 0.5 hours to remotely attend the hearing at counsel's requested hourly rate.

Baladehei is ordered to pay Nasserzare's counsel \$2,237.50 on or before October 30, 2026.

VI. CONCLUSION

Based on the foregoing, the Court GRANTS Nasserzare's Motions to Compel SROGs, FROGs, and RFPs. The Court GRANTS Nasserzare's Motion to Deem RFAs Admitted. However, should Nasserzare's counsel agree that the RFA responses are code compliant at the hearing, the Court will deny the motion. Should Nasserzare's counsel not agree, then counsel are directed to submit it to the Court to review and the Court will continue the hearing on the Motion RFAs.

Baladehei is ordered to provide code compliant responses without objection on or before October 9, 2026. Baladehei is ordered to pay Nasserzare's counsel \$2,237.50 on or before October 30, 2026.

IT IS SO ORDERED.

DATED: September 23, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.